

25SMCV06075 25SMCV06075

County: los-angeles

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Case Number: 25SMCV06075 Hearing Date: August 19, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NEW LION ENTERPRISES, LLC,

Plaintiff,

v.

REVIVE WELLNESS COUNSELING CENTER, et al.,

Defendants.

Case No.: 25SMCV06075

Hearing Date: August 19, 2026

[TENTATIVE] order RE:

PLAINTIFF'S motion for

terminating AND MONETARY

sanctions OR IN THE ALTERNATIVE

FOR ORDERS DEEMING PLAINTIFF'S

REQUESTS FOR ADMISSIONS

ADMITTED AND COMPELLING

RESPONSES WITHOUT OBJECTIONS TO

PLAINTIFF'S INTERROGATORIES AND

REQUESTS FOR PRODUCTION

BACKGROUND

This is a breach of contract case. Plaintiff New Lion Enterprises LLC is the owner of the real property located at 9150 Wilshire Boulevard, Suite 247, Beverly Hills, California ("Property"). Defendants Revive Wellness Counseling Center, Rodney Rabbani, Nova Ghanouni, and Joanna Zioni entered a lease agreement with Plaintiff on January 31, 2024, with an ending date of February 28, 2027. Plaintiff alleges Defendants breached the lease agreement by ceasing rent payment and abandoning the premises beginning October 1, 2025. Plaintiff alleges Defendants are liable for unpaid rent and related charges. The operative complaint alleges claims for (1) breach of contract and (2) common counts.

This hearing is on Plaintiff's motion for terminating and monetary sanctions. Plaintiff argues that Defendants and their counsel have engaged in a pattern of deception and fraud. First, Plaintiff points to a purportedly fabricated email showing that a letter of termination was sent by Defendants to Plaintiff on August 29, 2025 (which is the crux of Defendants' defense in this case). Second, Plaintiff claims that Defendants' meet and confer declaration in support of their demurrer was false when it claimed Plaintiff's counsel had not responded to Defendants' meet and confer letter. Lastly, Plaintiff claims that Defendants fabricated proofs of service to support timely service of their responses to Plaintiff's sixteen sets of written discovery requests.

Plaintiff seeks terminating sanctions and monetary sanctions in the amount of \$13,935 plus \$1,000 per responding party. In the alternative, Plaintiff seeks an order deeming Defendants to have admitted the requests for admissions and compelling Defendants to respond to the other discovery requests (without objections) and for monetary sanctions.

LEGAL STANDARD

California Code of Civil Procedure section 2023.030 permits courts to impose sanctions against anyone engaging in conduct that constitutes a misuse of the discovery process. Section 2023.010 provides a non-exhaustive list of conduct that is considered misuse of the discovery process, including failing to respond or to submit to an authorized method of discovery, providing evasive answers, and asserting unmeritorious objections. (Cal. Civ. Proc. § 2023.010(d), (g).)

Further, Code of Civil Procedure section 2023.030 subdivision (d) gives courts the authority to issue a terminating sanction by one of four following orders: (1) an order striking out the pleadings or parts of the pleadings of any party engaging in misuse of the discovery process; (2) an order staying further proceedings until an order for discovery is obeyed; (3) an order dismissing the action, or any part of the action, of that party; or (4) an order rendering a default judgment against that party.

In determining whether to impose terminating sanctions, trial courts must consider the totality of the circumstances, including whether the actions were willful; the detriment to the propounding party; and the number of informal and formal attempts to

obtain the discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. (Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1293; Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 928–929.) The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should “attempt[] to tailor the sanction to the harm caused by the withheld discovery.” (Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns (1992) 7 Cal.App.4th 27, 36.)

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. “Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (Laguna Auto Body v. Farmers Ins. Exchange, 231 Cal.App.3d at p. 487.) If a lesser sanction fails to curb misuse, a greater sanction is warranted; continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992.)

DISCUSSION

Plaintiff relies on three “facts” to support its motion for terminating sanctions: (1) a purportedly fabricated termination letter that forms the basis of Defendants’ defense; (2) a false declaration from counsel as to whether Plaintiff responded to a meet and confer request, and (3) false proofs of service. As to the first, this appears to be an issue for the jury and not a basis for finding a discovery abuse, warranting a terminating sanction. As to the second, the Court cannot conclude that any alleged misstatement that Plaintiff did not respond to a meet and confer warrants a sanction, particularly as it had no bearing on the ruling on the demurrer. What is most troubling to the Court is Plaintiff’s claim that Defendants fabricated the proofs of service so that they can claim that they timely responded to Plaintiff’s discovery requests.

Plaintiff served sixteen sets of discovery, four on each Defendant on May 26, 2026. The requests were served by e-mail, which means the responses were due within 30 days plus two court days for service by e-mail, or by June 29, 2026. Defendants claim that the responses were served by mail on June 29, 2026, but Plaintiff argues that the proofs of service were false.

According to Plaintiff, the tracking number for the USPS package showed that the shipping label was not created until June 30, 2026 (meaning it could not have been sent on June 29, 2026). In opposition, Defendants argue that the creation date of the shipping label is based on Coordinated Universal Time (which is used by the USPS). Coordinated Universal Time is 7 hours later than Pacific Standard Time. Thus, the creation date of June 30, 2026 at 1:26 a.m. means that the label was actually created on June 29, 2026 at 6:26 p.m., which is the date and time Defendants’ paralegal attests she created the shipping label.

According to the paralegal, she deposited the package at their building’s post office box on June 29, 2026 at 11:30 p.m. Plaintiff points out that this cannot be the case because the USPS did not accept the package until July 2, 2026. Plaintiff argues that it does not take three days for the USPS to accept a package that was put in the mailbox on June 29, 2026. Meanwhile, Defendants argue that they are not responsible for the post office’s collection lag.

As evidence of their story, Defendants attach a screenshot that shows that the mailing label was created on June 29 at 6:26 p.m., and it was printed out on June 29 at 11:26 p.m. There is nothing in the screenshot that indicates that this tracking record corresponds to the particular package at issue. There is also nothing in the screenshot that shows that the package was actually deposited in the mailbox on June 29.

Plaintiff also casts doubt on the screenshot because it shows that the post office delivered the package at 4:08 a.m., when the post office does not start deliveries until 8:00 a.m. Of course, the times could be Coordinated Universal Time which means that the delivery was made at 11:08 a.m. (which is the precise time Plaintiff’s counsel says the package was delivered).

As additional proof that the proofs of service were fabricated, Plaintiff points to the fact that the pdf files containing the discovery responses which were emailed to Plaintiff on July 7 (after Plaintiff told Defendants they had not received the discovery responses) have a creation stamp of July 1, 2026. Defendants explain that it is their standard practice to convert served documents into PDFs, and save those files in an index identifying the method and date of service, so anyone reviewing the file can determine how and when a document was served without opening it. So the creation stamp corresponds with the creation of the pdf files, and not the creation of the documents. In reply, Plaintiff points out that Defendants have not produced metadata showing that the word documents were actually created on or before June 29, 2026, which is telling.

Plaintiff also argues that every other document served in the case was by e-mail, and therefore, the service of the responses by mail is suspicious, particularly since the responses were over 360 pages and it would have been more economical to serve them by e-mail. Defendants do not provide any explanation of why they chose to serve the discovery responses in this instance by mail, versus by e-mail.

Given the conflicting arguments and the need to assess the credibility of the paralegal (Ms. Shun Jefferson), the Court will order an evidentiary hearing for September 30, 2026 at 8:30 a.m.

CONCLUSION

Based on the foregoing, the Court continues the hearing on Plaintiff's motion for terminating sanctions to September 30, 2026 at 8:30 a.m. Defendants are ordered to produce Ms. Jefferson during the evidentiary hearing as well as any evidence showing that the word documents were created on or before June 29, 2026.

IT IS SO ORDERED.

DATED: August 19, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court